

How to File a Truth in Advertising Complaint

If you notice a competitor or other business running an ad that you believe is deceptive, you can determine your legal options under federal and district statutes that protect businesses from unfair competition. The Lanham Act gives companies the right to sue their competitors for making deceptive claims in ads.

If the ad is running regionally or nationally, you can also file a complaint with the National Advertising Division (NAD) of the Council of Better Business Bureaus (BBB). The NAD is a private, self-regulatory group affiliated with the BBB that will investigate complaints of deceptive advertising; it also provides advertisers with a method for resolving disputes voluntarily. For local ads, the BBB may have procedures for resolving the issue.

You can also contact the advertising vehicle used to publish the false or misleading ad, as well as the attorney general's office or your local office of consumer affairs.

You may also contact the FTC. Visit its website and search for "submit a consumer complaint."